

MAIL**UNITED LAWYERS**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ALBERTO LUCERO AND CARLOS BAEZ.

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, THE NEW YORK CITY
POLICE OFFICER JOEL AYALA, TAX #954509,
INDIVIDULLY AND AS A POLICE OFFICER,
POLICE OFFICER RIVERA, SHIELD #696,
INDIVIDUALLY AND AS A, POLICE OFFICER,Defendants.
-----X**SUMMONS WITH
VERIFIED COMPLAINT**

Index No.:

Dated Purchased:

Plaintiffs designate Bronx
County as the place of trial.
The basis of the venue is place
where the cause of action arose:**To the above named Defendant(s):**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 13 day of October, 2015EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq., as Counsel
Attorneys for Plaintiffs15 OCT 16 11:12:34
COUNTY CLERK
BRONX COUNTY

RECEIVED

499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Police Officer EDMUNDO RIVERA
Shield # 696
c/o 52nd pct.
3016 Webster Ave
Bronx, NY 10467

Police Officer Joel Ayala
Tax # 954509
c/o 52nd pct.
3016 Webster Ave
Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ALBERTO LUCERO AND CARLOS BAEZ.

Plaintiffs,

-against-

VERIFIED COMPLAINT

Index No.:

Dated Purchased:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, THE NEW YORK CITY
POLICE OFFICER JOEL AYALA, TAX #954509,
INDIVIDULLY AND AS A POLICE OFFICER,
POLICE OFFICER RIVERA, SHIELD #696,
INDIVIDUALLY AND AS A, POLICE OFFICER,

Defendants.
-----X

15 OCT 16 AM 12:54
COUNTY CLERK
BRONX COUNTY

RECEIVED

The plaintiffs, Alberto Lucero and Carlos Baez by their attorneys, Edmund &
Russell, LLP complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, hereinafter certified to as "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department hereinafter referred to as "NYPD", including all the police officers therein.
3. Upon information and belief, at all times hereinafter mentioned, and on the 27th day of October, 2014, Police Officer Edmundo Rivera, hereinafter referred to as "Rivera" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 52nd pct. and at

all relevant times set forth below acted in the capacity of a police officer. Upon information and belief Rivera's shield number is 696.

4. Upon information and belief at all times hereinafter mentioned and on the 27th day of October, 2014, "Rivera", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee

5. Upon information and belief, at all times hereinafter mentioned, and on the 27th day of October, 2014, Police Officer Joel Ayala, hereinafter referred to as "Ayala" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 52nd pct. and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief Ayala's tax id number is 954509.

6. Upon information and belief at all times hereinafter mentioned and on the 27th day of October, 2014, "Ayala" was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.

7. Collectively Rivera and Ayala will hereafter be referred to as the "officers".

8. Upon information and belief, on October 27, 2014 the "officers", individually and/or collectively were acting under and required to follow the New York City Police Patrol Guidelines, Interim Orders and/or Administrative Orders

9. On the 27th day of October, 2014, plaintiff Alberto Lucero, hereinafter referred to as "Lucero" was a resident of the State of New York, County of Bronx.

10. On the 27th day of October, 2014, plaintiff Carlos Baez, hereinafter referred to as "Baez" was a resident of the State of New York, County of Bronx.

11. Collectively Lucero and Baez are also referred to herein as the "plaintiffs".

12. That on October 27, 2014, at approximately 11:30 p.m. the plaintiffs were

lawfully inside the lobby of 2487 Davidson Avenue, Bronx, New York, hereinafter referred to as "the location".

13. At that time and location, the plaintiffs observed approximately two officers, upon information and belief Ayala and Rivera, enter the lobby of the location from the area of the elevator/stairs.

14. The officers asked what the plaintiffs were doing in the lobby, and despite providing valid legal reasons for their presence, the officers proceeded to handcuff the plaintiff, Lucero, and detain Baez.

15. Lucero was searched, and after the officers failed to find any contraband on him they released Lucero from the handcuffs and issued Lucero a Summons to appear in Court.

16. Said Summons, # 4417794480, falsely charged Lucero with disorderly conduct for blocking pedestrian traffic.

17. While in the lobby, Baez was grabbed by Ayala, and placed against the wall.

18. Upon information and belief Rivera searched Baez.

19. No contraband was found on Baez, and he too was issued a Summons, falsely charging Baez with disorderly conduct for blocking pedestrian traffic.

20. Neither Baez nor Lucero were engaged in any criminal conduct, and neither was blocking any pedestrian traffic at the aforementioned date and time.

21. Lucero appeared in criminal court to defend himself against the false charges made against him on docket # 2014SK085966. On January 5, 2015 all criminal charges were dismissed against Lucero by Judge Tolchin.

22. Baez appeared in criminal court to defend himself against the false charges made against him on docket number 2014SX085753. On December 30, 2014 all criminal charges were

dismissed against Baez by Judge Busching.

23. That notice of each plaintiff's claim and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City".

24. The plaintiff, Lucero, submitted to a 50 h hearing on February 23, 2015.

25. The plaintiff, Baez, submitted to a 50 h hearing on October 13, 2015.

26. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

27. That this action is commenced within one year and 90 days after the cause of action arose.

28. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF LUCERO
FOR FALSE IMPRISONMENT

29. The Plaintiff, Lucero, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "28" with the same force and effect as if more fully and at length set forth herein.

30. That beginning on or about the 27th day of October, 2014, at or about approximately 11:30 p.m. at or near the "location" until the plaintiff's release from handcuffs that same evening, the defendants, their agents, servants and/or employees detained and imprisoned Lucero without any just cause or grounds.

31. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes.

32. Lucero was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

33. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine Lucero; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

34. That by reason of the aforesaid false imprisonment and detention, plaintiff, Lucero, has been damaged.

35. That by reason of the aforesaid, Lucero has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
LUCERO FOR FALSE ARREST

36. The plaintiff, Lucero, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "35" with the same force and effect as if more fully and at length set forth herein.

37. That beginning on or about the 27th day of October, 2014, at or about

approximately 11:30 p.m. at the "location", the plaintiff, Lucero, was handcuffed, searched, and issued a Summons by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms..

38. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal stop and search of the plaintiff when the defendants lacked cause to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crimes.

39. Lucero was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

40. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest Lucero; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

41. That all criminal charges were ultimately dismissed against Lucero.

42. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, humiliation, and the said plaintiff has been otherwise damaged.

43. That by reason of the aforesaid, Lucero has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
LUCERO FOR ASSAULT AND BATTERY

44. The Plaintiff Lucero repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "43" with the same force and affect as if more fully and at length set forth herein.

45. That on the aforementioned date, time and location the plaintiff, Lucero, was seized, handcuffed and searched by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including upon information and belief Ayala and Rivera.

46. That all said contact was committed without the plaintiff's permission or consent.

47. That all said contact was unlawful and without privilege.

48. That all contact committed by defendants through their agents, servants, and/or employees, including defendants Ayala and/or Rivera, was offensive to plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff humiliation and stress.

49. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

50. That by reason of the aforesaid, Lucero has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
LUCERO FOR NEGLIGENCE

51. The Plaintiff Lucero repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "50" with the same force and affect as if more fully

and at length set forth herein.

52. That the defendant, "City" was careless and reckless in hiring, retaining, training, failing to retrain, supervising, investigating, assigning, monitoring, disciplining and promoting as and for its employees, the named defendant officers Rivera and Ayala in that said employee(s) lacked the experience, deportment, training, discipline, supervision and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, failing to properly retrain said officers and in retaining the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless, resulting in the harm and injury as described herein to Lucero.

53. That defendants "Rivera", and/or "Ayala" while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police dates; in that the police department permitted or condoned the false arrest, illegal/improper stop, question and frisk/search practices of these and other officers; and/or in permitting officers who engage in said conduct to submit false documentation to cover up the improper/illegal stop, question and frisk/search and seizure practices; in not disciplining officers who engage in the aforementioned conduct; in not

disciplining officers, including the named defendant officers, who fail to fill out and submit a stop, question and frisk form and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

54. That the aforesaid occurrence, to wit: assault and battery, false arrest and imprisonment, deprivation of freedom and the resulting criminal prosecution of Lucero was caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including the named defendants herein without any negligence on the part of the plaintiff, Lucero contributing thereto.

55. That by reason of the aforesaid, the plaintiff Lucero, was handcuffed, searched, and prosecuted for a crime that he did not commit and he was thereby damaged.

56. That by reason of the aforesaid, Lucero has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A FIFTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY POLICE OFFICERS RIVERA AND AYALA IN
THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF LUCERO
ALLEGES:

57. That plaintiff Lucero repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "56" with the same force and effect as if more fully and at length set forth herein.

58. That at all times hereinabove and hereinafter mentioned, the defendant "Rivera" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed

under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

59. That at all times hereinabove and hereinafter mentioned, the defendant "Ayala" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

60. That at all times hereinbefore and hereinafter mentioned, the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.

61. That during all times hereinbefore and hereinafter mentioned, the defendants "officers" individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth in this complaint to the injury of the plaintiff, Lucero, and deprived him of the rights, privileges and immunities secured to him by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

62. That the unlawful and illegal conduct of defendants on the date, time and location stated hereinabove deprived plaintiff, Lucero of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

a) The right of plaintiff to be secure in his person and effects against unreasonable

search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;

- b) The right to Due Process Law.
- c) The right to equal protection under the law.

63. That by reason of the aforesaid violations, including but not limited to: illegal seizure of plaintiff's person, illegal search of plaintiff's person; targeting the plaintiff; harassment of plaintiff; conspiracy to violate the plaintiff's rights; handcuffing the plaintiff; false arrest; filing false reports, and the malicious prosecution of the plaintiff, the defendant Police "Officers" violated Lucero's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983.

64. That as a direct proximate result of "the officers" actions plaintiff, Lucero, was subjected to great indignities and humiliation, physical injury, pain and distress of mind and body and was injured thereby.

65. That by reason of the aforesaid, Lucero was injured and damaged to be determined by the trier of fact, and seeks compensatory damages, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SIXTH CAUSE OF
ACTION ON BEHALF OF PLAINTIFF BAEZ
FOR FALSE IMPRISONMENT

66. The Plaintiff, Baez, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "65" with the same force and effect as if more fully

and at length set forth herein.

67. That beginning on or about the 27th day of October, 2014, at or about approximately 11:30 p.m. at or near the "location" the defendants, their agents, servants and/or employees detained plaintiff, Baez, and did not allow him freedom of movement without any just cause or grounds.

68. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff, Baez, was guilty of any crimes.

69. The plaintiff, Baez was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

70. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

71. That by reason of the aforesaid false imprisonment and detention, plaintiff Baez was subjected to great indignity and humiliation, economic loss, and the said plaintiff has been otherwise damaged.

72. That by reason of the aforesaid, the plaintiff Baez has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SEVENTH CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
BAEZ FOR MALICIOUS PROSECUTION

73. The plaintiff, Baez, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "72" with the same force and effect as if more fully and at length set forth herein.

74. That beginning on or about the 27th day of October, 2014, at or about approximately 11:30 p.m. at the "location", the plaintiff Baez was, without cause or reason, seized, searched and then issued a false summons alleging that he was blocking pedestrian traffic.

75. That said officers issued the Summons with an intent to prosecute the plaintiff for a crime/violation that they knew he did not commit.

76. Upon information and belief said officers issued the Summons to cover-up the illegal stop and search of the plaintiff, Baez, that they knew they had no right to engage in.

77. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal stop and search of the plaintiff, Baez, when the defendants lacked cause to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crimes.

78. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid conduct and subsequent criminal

prosecution entirely against his will.

79. That the plaintiff, Baez, was caused to appear in court to answer said charges on November 14, 2014.

80. That on December 30, 2014, all criminal charges were dismissed against Baez.

81. That by reason of the aforesaid malicious prosecution, Baez was injured.

82. That by reason of the aforesaid, the plaintiff, Baez, has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR AN EIGHTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
BAEZ FOR ASSAULT AND BATTERY

83. The Plaintiff Baez repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "82" with the same force and affect as if more fully and at length set forth herein.

84. The at the aforementioned date, time and location, the plaintiff Baez was seized, searched, and pushed against a wall by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including upon information and belief Ayala and/or Rivera.

85. That all said contact was committed without the plaintiff's permission or consent.

86. That all said contact was unlawful and without privilege.

87. That all contact committed by defendants through their agents, servants, and/or employees, including defendants Ayala and Rivera, was offensive to Baez and caused him to fear further contact and imminent harm.

88. That the above acts committed by the defendants constituted an assault and/or

battery of the plaintiff, Baez.

89. That by reason of the aforesaid, Baez has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
BAEZ FOR NEGLIGENCE

90. The Plaintiff Baez repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "89" with the same force and affect as if more fully and at length set forth herein.

91. That the defendant, "City" was careless and or negligent in hiring, retaining, training, failing to retrain, supervising, investigating, assigning, monitoring, disciplining and promoting as and for its employees, the named defendant officers Rivera and Ayala in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, failing to properly retrain and in retaining the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless, resulting in the harm as described herein to the plaintiff, Baez.

92. That on the aforementioned date, time and location the defendants "Rivera" and/or "Ayala" while acting within the scope of their employment, were negligent in that each

failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and/or reckless in the manner in which they investigated and/or performed his police duties; in that the police department permitted or condoned the improper stop, question and frisk practices, failed to properly train the law governing stop, question and frisk and search and seizure; failed to enforce the requirement that officers fill out stop, question and frisk forms; and failed to punish/discipline officers who failed to fill out stop, question and frisk forms; and tolerated the conduct of officers who engaged in false arrest and/or the issuance of false summons to cover-up improper police conduct, and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

93. That the aforesaid occurrence, to wit: assault and battery, false imprisonment, and malicious prosecution and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including the named defendants herein without any negligence on the part of the plaintiff, Baez, contributing thereto.

94. That by reason of the aforesaid, the plaintiff Baez, was imprisoned, was required to attend court proceedings in which he was prosecuted for a crime/violation that he did not commit, and was thereby damaged.

95. That by reason of the aforesaid, the plaintiff, Baez, has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A TENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY POLICE OFFICERS RIVER AND AYALA IN
THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF BAEZ ALLEGES:

96. That plaintiff Baez repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "95" with the same force and effect as if more fully and at length set forth herein.

97. That at all times hereinabove and hereinafter mentioned, the defendant "Rivera" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

98. That at all times hereinabove and hereinafter mentioned, the defendant "Ayala" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

99. That at all times hereinabove and hereinafter mentioned, the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.

100. That during all times hereinafter mentioned, the defendants "officers" individually, and/or collectively acted under color and pretense of law, to wit: under color of the

statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, Baez, and deprived him of the rights, privileges and immunities secured to him by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

101. That the unlawful and illegal conduct of defendants "officers" deprived plaintiff, Baez, of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;

b) The right to Due Process Law.

c) The right to equal protection under the law.

102. That by reason of the aforesaid violations, the illegal seizure of plaintiff's person, the illegal search of the plaintiff's person, issuing plaintiff, Baez a Summons based upon false charges; assault and battery and malicious prosecution the defendant, Police "Officers" violated Baez' rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983.

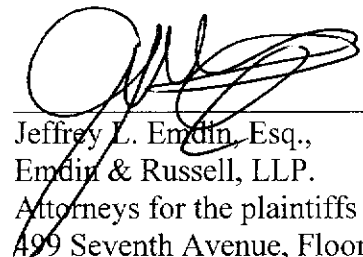
103. That as a direct proximate result of "the officers" actions plaintiff, Baez was injured and damaged in an amount to be determined by the trier of fact.

104. That by reason of the aforesaid, Baez seeks compensatory damages, plus, punitive

damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages and such other and further relief as to the Court seems just and proper on the First through the Fifth causes of action for plaintiff Lucero and on the Sixth through the Tenth Causes of Action by the Plaintiff Baez..

DATED: New York, New York
October 13 2015



Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiffs
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

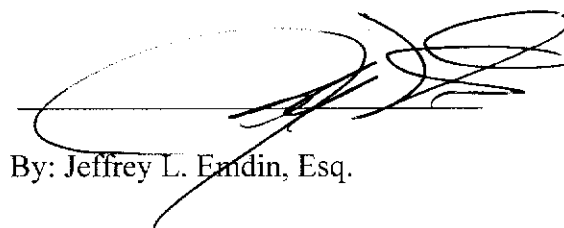
That I am an attorney associated with the law firm of Jeffrey L. Emdin, Esq., the attorneys of record for the Plaintiffs, Alberto Lucero and Carlos Baez, in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiffs is that the Plaintiffs do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
October 13 2015



By: Jeffrey L. Emdin, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ALBERTO LUCERO AND CARLOS BAEZ

Plaintiff(s).

~~against~~

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, THE NEW YORK
CITY POLICE OFFICER JOEL AYALA, TAX #954509, INDIVIDULLY AND AS A POLICE
OFFICER, POLICE OFFICER RIVERA, SHIELD #696, INDIVIDUALLY AND AS A,
POLICE OFFICER,

Defendant(s).

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP

Attorneys for Plaintiff

499 Seventh Avenue, Floor 12N

New York, NY 10018

(212) 683-3995

To: City of New York
c/o Corporation Counsel
City of New York
100 Church Street
New York, New York 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

P.O. Edmundo Rivera
Shield # 696
c/o 52nd pct.
3016 Webster Ave
Bronx, NY 10467

P. O. Joel Ayala
Tax # 954509
c/o 52nd pct.
3016 Webster Ave
Bronx, NY 10467

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New
York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained
in the annexed document are not frivolous.

Dated: October 15, 2015

Signature

Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

[] NOTICE OF ENTRY

that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on

[] NOTICE OF SETTLEMENT

that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on